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Case Number: 24SMCV00048 Hearing Date: August 10, 2026 Dept: 207

TENTATIVE

RULING

DEPARTMENT

207

HEARING DATE

August

10, 2026

CASE NUMBER

24SMCV00048

MOTIONS

(1)

Motion for Leave to Amend Cross-Complaint

(2)

Motion to Strike Second Amended Cross-Complaint

MOVING PARTIES

(1)

Defendant and Cross-Complainant Fairmount 16, LLC

(2)

Cross-Defendants Howard Altman, as Trustee of the Big
Norm Trust Dated March 23, 2013; Nina Jacobson; and Jennifer Bleakley

OPPOSING PARTIES

(1)

Cross-Defendants Howard Altman, as Trustee of the Big
Norm Trust Dated March 23, 2013; Nina Jacobson; and Jennifer Bleakley

(2)

Defendant and Cross-Complainant Fairmount 16, LLC

MOTION

This action stems from a dispute concerning a mudslide that affected
multiple neighbors on a hillside.

On January 4, 2024, Plaintiffs Marcus Rosner and Jill D. Rosner
("Plaintiffs" or "the Rosners") filed the operative Verified Complaint against
Defendants Fairmount 16 LLC ("Fairmount 16) and Howard Altman, individually and
as trustee of the Big Norm Trust dated March 23, 2013 ("Altman") alleging four
causes of action for (1) negligence; (2)
nuisance; (3) trespass; and (4) preliminary and permanent injunction.

On April 15, 2024, contemporaneous with its Answer, Fairmount 16 filed
a cross-complaint against Altman for indemnity and contribution.

On October 27, 2025, pursuant to stipulation, Fairmount 16 filed its
First Amended Cross-Compliant ("FAXC") against Altman for (1) indemnity; (2)
contribution; (3) nuisance; (4) negligence; and (5) tort of another,
subsequently substituting Cross-Defendants Nina Jacobson and Jennifer Bleakley
as Roes 1 and 2, respectively.

On May 22, 2026, Fairmount electronically filed a Second Amended
Cross-Complaint ("SAXC") against Altman, Jacobson, and Bleakley
("Cross-Defendants"), alleging six causes of action for (1) indemnity; (2)
contribution; (3) nuisance; (4) negligence; (5) tort of another; and (6)
injunctive relief.

Fairmount 16 now moves for leave to file its Second Amended Complaint. Cross-Defendants oppose the motion and Fairmount 16 replies.

Cross-Defendants also move to strike the Second Amended Complaint Fairmount 16 already filed. Fairmount 16 opposes the motion and Cross-Defendants reply.

LEGAL STANDARD

Amendments
to Pleadings: General Provisions

Under Code of Civil Procedure section 473, subdivision (a)(1), "The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading or proceeding by adding or striking out the name of any party, or by correcting a mistake in the name of a party, or a mistake in any other respect; and may, upon like terms, enlarge the time for answer or demurrer. The court may likewise, in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars; and may upon like terms allow an answer to be made after the time limited by this code."

To wit, without notice to the other party the Court has wide discretion to allow either party (i) to add or strike the name of a party or (ii) to correct a mistake in the name of a party or a mistake in any other respect "in furtherance of justice" and "on any terms as may be proper." (See Code Civ. Proc., § 473, subd. (a)(1); see also *Marriage of Liss* (1992) 10 Cal.App.4th 1426, 1429.) Alternatively, after notice to the other party, the Court has wide discretion to allow either party to amend pleadings "upon any terms as may be just." (See Code Civ. Proc., § 473, subd. (a)(1). Similarly, Code of Civil Procedure section 576 states "Any judge, at any time before or after commencement of trial, in the furtherance of justice, and upon such terms as may be proper, may allow the amendment of any pleading or pretrial conference order."

Judicial policy favors resolution of all disputed matters between the parties and, therefore, leave to amend is

liberally granted. (*Berman vs. Bromberg* (1986) 56 Cal.App.4th 936, 945; *Hirsa v. Superior Court* (1981) 118 Cal.App.3d 486, 488-489 [this has been an established policy in California since 1901] (citing *Frost v. Whitter* (1901) 132 Cal. 421, 424; *Thomas v. Bruza* (1957) 151 Cal.App.2d 150, 155).) The Court of Appeal in *Morgan v. Superior Court* held "If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend and where the refusal also results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense, it is not only error but an abuse of discretion." (*Morgan v. Superior Court* (1959) 172 Cal.App.2d 527, 530, citations omitted.) Moreover, "it is an abuse of discretion for the court to deny leave to amend where the opposing party was not misled or prejudiced by the amendment." (*Kittredge Sports Co. v. Superior Court* (1989) 213 Cal.App.3d 1045, 1048 [opposing party did not establish harm by the delay in moving to amend the complaint].)

"The court may grant leave to amend the pleadings at any stage of the action." (Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2026) ¶ 6:636 (hereafter Weil & Brown).) Denial of a motion to amend is rarely justified if the motion is timely made and granting the motion will not prejudice the opposing party. (*Id.* at ¶ 6:639, citations omitted.) However, if the party seeking the amendment has been dilatory, and the delay has prejudiced the opposing party, the judge has discretion to deny leave to amend. (*Id.* at ¶ 6:655, citations omitted. Absent prejudice, any claimed delay alone is not grounds for denial. "If the delay in seeking the amendment has not misled or prejudiced the other side, the liberal policy of allowing amendments prevails. Indeed, it is an abuse of discretion to deny leave in such a case even if sought as late as the time of trial. (*Id.* at ¶ 6:653 (citing *Higgins v. Del Faro* (1981) 123 Cal.App.3d 558, 564-565).) "Prejudice exists where the amendment would result in a delay of trial, along with loss of critical evidence, added costs of preparation, increased burden of discovery, etc. . . . But the fact that the amendment involves a change in legal theory which would make admissible evidence damaging to the opposing party is not the kind of prejudice the court will consider." (Weil & Brown, *supra*, at ¶ 6:656, citations omitted.)

"Even if some prejudice is shown, the judge may still permit the amendment but impose conditions, as the Court is authorized to grant leave 'on such terms as may be proper.'" (Weil &

Brown, supra, at ¶ 6:663, citation omitted.) For example, the court may cause the party seeking the amendment to pay the costs and fees incurred in preparing for trial. (Id. at ¶ 6:664 (citing Fuller v. Vista Del Arroyo Hotel, 42 Cal.App.2d 400, 404).)

California

Rules of Court, rule 3.1324: Procedural Requirements

Pursuant to California Rules of Court, rule 3.1324(a), a motion to amend a pleading before trial must:

“(1) Include a copy of the proposed amendment or amended pleadings, which must be serially numbered to differentiate it from previous pleadings or amendments;

(2) state what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph, and line number, the deleted allegations are located; and

(3) State what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located.”

In addition, under Rule 3.1324(b), a motion to amend a pleading before trial must be accompanied by a separate declaration that specifies the following:

“(1) the effect of the amendment;

(2) why the amendment is necessary and proper;

(3) when the facts giving rise to the amended allegations were discovered; and

(4) the reasons why the request for amendment was not made earlier.”

DISCUSSION

I.

Whether Leave to Amend was Required

Fairmount 16 first argues that it filed the SAXC in response to Altman's demurrer to the FAXC before the time the opposition was due, and therefore no leave to amend is required.

Code of Civil Procedure section 472 provides:

A party may amend its pleading once without leave of the court at any time before the answer, demurrer, or motion to strike is filed, or after a demurrer or motion to strike is filed but before the demurrer or motion to strike is heard if the amended pleading is filed and served no later than the date for filing an opposition to the demurrer or motion to strike. A party may amend the pleading after the date for filing an opposition to the demurrer or motion to strike, upon stipulation by the parties. The time for responding to an amended pleading shall be computed from the date of service of the amended pleading.

(Code
Civ. Proc., § 472, subd. (a), emphasis added.)

Further, in opposition to Cross-Defendants' motion to strike, Fairmount 16 argues that because the FAXC was filed pursuant to stipulation, it has not yet actually filed its one amended pleading as a matter of right.

In opposition to Fairmount 16's motion for leave to amend, Cross-Defendants argue that *Hedwall v. PCMV, LLC* (2018) 22 Cal.App.5th 564 (hereafter *Hedwall*) prohibits Fairmount 16 from filing a second amended cross-complaint as a matter of right before the date for filing an opposition to the demurrer.

Hedwall involves a somewhat different procedural posture, because *Hedwall* and the cases it analyzed involved an attempt to file a further amended complaint after a demurrer had already been sustained. Thus, the complainant's right to file an amended pleading thereafter was to be conferred by court order, not by statute. As such, the complainant therein could no longer utilize Section 472 to further amend the pleading as a matter of right.

By contrast, here, the Court has not yet sustained any demurrer to Fairmount 16's cross-complaint. Fairmount 16 filed its initial cross-complaint contemporaneously with its answer; Fairmount 16 filed the FAXC by stipulation of the parties; and Fairmount 16 filed the SAXC in response to Altman's then pending demurrer. Notwithstanding, Hedwall interprets the language of Section 472 as follows:

Under the generic understanding of the term "pleading," section 472 is reasonably viewed as limiting the right to amend "the complaint" as a matter of right to the complaint as originally filed, that is, the version of the complaint that commences the action. Within the statute, the phrase "[a] party may amend its pleading once without leave of the court" is followed by time restrictions specified in similarly generic terms, that is, "before the answer or demurrer," or no later than the date for filing an opposition to a demurrer. (§ 472, subd. (a), *italics added*.) When the italicized term is understood to refer to the complaint as a generic document—that is, as the document by which the plaintiff commences and maintains the litigation, regardless of how many times it is amended—only the original version of the complaint appears to satisfy the restrictions. That is because only the original version of the complaint is filed before "the answer or demurrer," viewed as the generic documents by which the defendant alleges defenses. By parity of reasoning, under section 472, the right to amend a cross-complaint as a matter of right is similarly limited to the original version of the cross-complaint.

(Hedwall, *supra*, 22 Cal.App.5th at pp. 574–575.)

The Court of Appeal instructs that the right to file an amended cross-complaint as a matter of right under Section 472 applies only to the original version of the cross-complaint, and only before an answer, demurrer, or motion to strike is filed, or after a demurrer or motion to strike is filed but before the opposition deadline.

Here, even though Fairmount 16 has not yet filed an amended complaint "once" as a matter of right, pursuant to Section 472, because it has already filed a FAXC, it may no longer amend the cross-complaint as a matter of right pursuant to Section 472. As such, because the parties have not stipulated to the filing of the SAXC, leave of Court is required.

II.

Whether

Leave to Amend is Granted

In support of its request for leave, Fairmount 16 advances the Declaration of Michael I. Kehoe, which indicates as follows:

2. A true and correct copy of the conformed Second Amended Cross-Complaint ("SACC") is attached as Exhibit "A" hereto.

3. True and correct copies of the excerpts from the February 2, 2026 deposition of Defendant and Cross-Defendant Howard Altman ("Altman") are attached hereto as Exhibit "B" and incorporated herein by reference. Key information regarding Cross-Defendants Nina Jacobson ("Jacobson") and Jennifer Bleakley ("Bleakley") was gleaned from Altman's deposition, as noted in the deposition excerpts attached as Exhibit "B" hereto.

4. Based on the information obtained at Altman's deposition, Fairmount promptly filed form "Roe" amendments substituting Jacobson and Bleakley as Roes 1 and 2, respectively to Fairmount's First Amended Cross-Complaint (the "FACC"). This was done on February 17, 2026.

5. Altman filed and served a Demurrer to the FACC on or about May 7, 2026. Although Fairmount disagreed with the arguments contained in the Demurrer, Fairmount nevertheless opted to avoid the waste of Court resources by challenging the Demurrer and instead filed its SACC. The SACC was filed on May 22, 2026. Thus, Fairmount filed its SACC while Altman's Demurrer was pending and before the June 5, 2025 deadline by which Fairmount was to file its opposition to the Demurrer.

6. The SACC specifically names Jacobson and Bleakley as Cross-Defendants as opposed to simply having them substituted in as "Roe" cross-defendants. The SACC also adds new factual allegations specifically addressing Jacobson and Bleakley. Finally, the SACC adds a new cause of action for injunctive relief. The SACC was accepted by the Court for filing on May 22, 2026.

7. Fairmount's SACC does not constitute an "unfair surprise" to Jacobson or Bleakley for multiple reasons. Both Jacobson and Bleakley were named as Roe defendants back in February. Therefore, they have both been on

notice of the nature of the claims and the allegations against them since early this year. Moreover, based on the testimony of Altman, both know they are the true owners of the property of which Altman serves as trustee. The only new cause of action contained in the SACC is one for injunctive relief, and that cause of action is predicated upon the same factual allegations that were included in the FACC so there is no surprise as to any fact allegation in the SACC. Finally, trial was vacated to allow remedying the problem(s) on the Bleakley/Jacobson property meaning that there is no prejudice whatsoever to either of them as they have ample time to prepare for a trial that has not yet been set.

(Kehoe

Decl. ¶¶ 2-7.)

Although the Kehoe Declaration describes the effect of the proposed amendments (to add allegations specific to Jacobson and Bleakley and to add a cause of action for injunctive relief), demonstrates when the facts giving rise to the amendments were discovered (at the February 2, 2026 Altman deposition), and indicates that it was made in response to Altman's demurrer (hence, why it was not made sooner), Fairmount 16 has neither attached a redlined version of the proposed SAXC, nor stated all proposed additions and deletions by page, paragraph, and line number, as required by California Rules of Court, rule 3.1324(a), nor does the Kehoe Declaration state why the proposed amendments are necessary and proper.

Therefore, finding the motion procedurally improper, the Court cannot grant leave at this time. However, because the denial is on procedural grounds, it is made without prejudice to Fairmount 16 filing a renewed motion for leave to file the second amended cross-complaint.

III.

Motion to Strike

Any party, within the time allowed to respond to a pleading, may serve and file a motion to strike the whole pleading or any part thereof. (Code Civ. Proc., § 435, subd. (b)(1); Cal. Rules of Court, rule 3.1322, subd. (b).)

On a motion to strike, the court may: (1) strike out any irrelevant, false, or improper matter inserted in any pleading; or (2) strike out all or any part of any pleading not drawn or filed in conformity with the laws of

California, a court rule, or an order of the court. (Code Civ. Proc., § 436, subd. (a)-(b); *Stafford v. Shultz* (1954) 42 Cal.2d 767, 782.)

Here, because the SAXC was not filed in conformity with the laws of California, a Court rule, or an order of the Court, the Court grants Cross-Defendants' motion and strikes the SAXC filed on May 22, 2026.

CONCLUSION AND ORDER

For the foregoing reasons, finding that the SAXC was not filed in conformity with the law, the Court grants Cross-Defendants' motion and strikes the SAXC filed by Fairmount 16 on May 22, 2026.

Further, the Court denies Fairmount 16's motion for leave to file the SAXC on procedural grounds, but without prejudice to Fairmount 16 filing a renewed motion for leave to amend.

The Court will enter the proposed Orders lodged by Cross-Defendants and Fairmount 16 on June 23, 2026 and July 10, 2026 in conformity with the ruling.

Cross-Defendants and Fairmount 16 shall provide notice of the Court's ruling/Orders as to the their respective motions, and file the notices with proofs of service forthwith.

DATED: August 10, 2026 ____/s/____

Michael
E. Whitaker

Judge
of the Superior Court